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CVSW2308928	KARAS VS KPC GLOBAL MEDICAL CENTERS, INC.	MOTION FOR SECURITY BOND AND ORDER REQUIRING THIS COURT'S PERMISSION FOR PLAINTIFF TO MAINTAIN THIS INSTANT ACTION BASED ON HIS STATUS AS A VEXATIOUS LITIGANT
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Tentative Ruling: The Corporate Defendants' Motion for an Order Requiring Security in granted in the amount of \$200,000.00. If Plaintiff fails to furnish the required security within 30 days of this order, Plaintiff's SAC shall be dismissed as to Corporate Defendants only.

Corporate Defendants' Motion for an Order Requiring this Court's Permission for Plaintiff to Maintain the Instant Action is denied.

REQUEST FOR JUDICIAL NOTICE

Corporate Defendants' request is denied for judicial notice of the May 15, 2026 Notice of Ruling filed in San Diego Superior Court Case No. 24CL024029C, which deemed Plaintiff to be a vexatious litigant. Corporate Defendants acknowledge that this Court has already deemed Plaintiff a vexatious litigant in this action as of May 20, 2026. (Behrendt Decl., Exh. 3.) Accordingly, the San Diego Superior Court's notice of ruling is not relevant to the instant motion for an order requiring Plaintiff to post security.

EVIDENTIARY OBJECTIONS

Plaintiff's Objections to Hospital Defendants' Motion

Similar to his objections to Physician Defendants' prior motion, Plaintiff objects that the Coleman and Leary declarations lack evidentiary foundation because the medical records upon which they relied are not attached to the motion and were allegedly obtained in violation of HIPAA and CMIA. Neither objection is availing. As to foundation, the declarations were submitted under penalty of perjury by retained experts based on records produced in discovery, thus they constitute competent evidence for purposes of this motion. As to Plaintiff's allegations of HIPAA and CMIA violations, these are